

Request to change child support



Instructions

For the latest information, learn more about **Starting a case to change child support payments** at: <https://www.illinoislegalaid.org/legal-information/starting-case-change-child-support-payments> .

Note: E-filing and remote court have changed how things work. Check with your local Circuit Clerk on how to request a court hearing date, file your papers, and whether the hearing is in-person or remote. Read the “How to File and Send a Motion and Notice” instructions after page 2 for details.

What to do right now:

1. If you did not add your e-signature, sign and date the **Motion to Modify Child Support**, and sign each Proof of Delivery that is attached. Make 3 copies of the motion after you sign it.
2. If you did not add your e-signature, sign the **Notice of Court Date for Motion** and complete the delivery method and time if necessary. Ask the local Circuit Clerk about the hearing to fill out section 1. Hearing Information. See details below. Make a copy to keep for your own records.
3. If you did not start the earlier divorce or support case that led to the child support order, and have never filed an **Appearance** in the case, you may need to file one. Check with your local Circuit Clerk. You can use this Easy Form to make your **Appearance**: <https://www.illinoislegalaid.org/legal-information/appearance>
4. E-file your **Motion to Modify Child Support** and **Notice of Court Date for Motion** using the “How to File Your Forms” e-filing instructions below
-OR- Take all copies of the **Motion to Modify Child Support** and each **Notice of Court Date for Motion** to the motion counter at the courthouse where you are filing.
 - If you are filing paper forms at the courthouse (not e-filing),
 - The clerk will file stamp all the papers, keep the originals for the court file, and give you back your copies.
 - The clerk will tell you what times and dates a Judge can hear your motion. You must choose one of these times. The clerk will write that time and date on the original papers, and you must write the same time and date on the other copies.
 - In Cook County, check with the court coordinator to get remote court information and find out if the judge wants emailed copies of the file-stamped motion and notice before the court date. See "Zoom & Contact Information for the Domestic Relations Division - Remote Court Proceedings" at <https://www.cookcountycourtill.gov/division/domestic-relations-division#ocj-contact-zoom-information>
 - If your case involves the Department of Healthcare and Family Services, the State’s Attorney or the Attorney General’s office, the clerk may keep a copy of the motion and a notice and deliver those for you. Ask the clerk if you need to mail a copy of the motion and the notice to the State’s Attorney or Attorney General’s office.
 - If you need to file an **Appearance**, you will be asked to pay a fee. If you cannot afford to pay, please read these instructions on waiving court fees: <https://www.illinoislegalaid.org/legal-information/filing-court-papers-free>
5. You must then deliver all the forms listed below to the other parent and their lawyer, if they have one. It is a good idea to send these forms electronically or by certified mail so you have proof of delivery.
 - One copy of the **Motion to Modify Child Support**,
 - The **Notice of Court Date for Motion** which is addressed to them.

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6. You will likely have to complete a **Financial Affidavit**, if you have not done so recently. You can use the Financial affidavit Easy Form at <https://www.illinoislegalaid.org/legal-information/financial-affidavit> to fill out the form. **Note:** If you are asking the court to end child support because all the children have graduated high school or have become emancipated, you do not have to complete this form.

What to do on your court date:

1. Bring all the following papers with you to court. You should have a copy for yourself, plus one to give to the judge, if needed:
 - The **Motion to Modify Child Support**,
 - All **Notice of Court Date for Motion forms**, and
 - The **Order for Support** for the judge to complete after the hearing.If you are not ending child support, you will also need to bring the following:
 - Your completed **Financial Affidavit**,
 - The **Support Information Sheet** to give the judge (do not file with the clerk as it contains sensitive information),
 - The **Income Withholding for Support** if the paying parent is employed or getting unemployment benefits, and you want support payments to be deducted and sent to the receiving parent automatically, and
 - Any other papers which have been filed in this case.
2. Dress nicely, like you would for a job interview.
3. Plan to arrive 30-45 minutes early. If you are not in court when the judge calls your case, the judge may “strike” your motion. If that happens, you will need to start all over again.
4. **Note:** If you are attending remotely, some judges require that you use video instead of phone.

What to do after the court date:

If child support payments have changed, you need to make sure the employer of the parent who is paying support knows about it.

1. Make sure the updated child support payment amount and frequency are listed in the **Income Withholding for Support** and **Letter to Employer**. The **Order for Support** signed by the judge should have this information.
2. Send the **Letter to Employer**, **Income Withholding for Support**, and **Order for Support** to the employer of the parent who will pay support. Mail these using Certified Mail, so you have a record of sending these forms.
3. If your case involves the Illinois Department of Healthcare and Family Services (HFS), contact them to help deliver the forms. You can contact Child Support Services by calling 1-800-447-4278 (TTY: 1-800-526-5812). Or you can find a regional office by visiting: <https://hfs.illinois.gov/childsupport/parents/offices.html>
4. If the other parent does not pay the child support payments they are ordered to pay, learn about enforcing a child support order: <https://www.illinoislegalaid.org/legal-information/enforcing-child-support-order-0>